

26STLC00627 26STLC00627

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-24

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Case Number: 26STLC00627 Hearing Date: June 24, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Tsang Han Wang's Common Law Motion for Judgment on

the Pleadings is continued to July 22, 2026 at 10:00 am in Department 26 at the

Spring Street Courthouse.

Analysis:

On January 29, 2026, Plaintiff

Tsang Han Wang ("Plaintiff") filed the instant action against Defendant Malwarebytes, Inc.

("Defendant"). Defendant filed its Answer on March 9, 2026. On March 18, 2026,

Plaintiff filed (1) the Application for Leave to File Memorandum of Points and

Authorities in Excess of Page Limit; (2) the Demurrer to Answer; and (3) the

Motion for Judgment on the Pleadings. On April 22, 2026, the Court sustained

the Demurrer to the Answer with leave to amend as to the fifth through ninth

and twenty-second affirmative defenses, and otherwise overruled the Demurrer.

(Minute Order, 04/22/26.) Defendant filed its Amended Answer on May 12, 2026.

On May 14, 2026, Defendant filed a Motion to Declare

Vexatious Litigant, which is set for hearing on July 7, 2026. Defendant filed

its opposition to the instant Motion for Judgment on the Pleadings on June 5,

2026, to which Plaintiff filed an objection and Notice of Violation of Stay on

June 8, 2026

Discussion

Both parties agree that the instant Motion for Judgment on

the Pleadings is stayed in light of Defendant's Motion to Declare Vexatious

Litigant, which is brought pursuant to Code of Civil Procedure section 391.1.

Section 391.6 expressly provides that "when a motion pursuant to Section 391.1

is filed prior to trial the litigation is stayed ... until 10 days after the

motion shall have been denied, or if granted, until 10 days after the required

security has been furnished and the moving defendant given written notice

thereof." (Code Civ. Proc., § 391.6.) Accordingly, the hearing on the instant

Motion for Judgment on the Pleadings is continued to July 22, 2026 at 10:00 am

in Department 26 at the Spring Street Courthouse. Defendant has already filed its

opposition. Plaintiff may file a reply in

support of the Motion consistent with Code of Civil Procedure, §1005(b).

Moving

party to give notice.